

NAGARIKSURAKSHA

CHAPTER II

# GENERAL EXPLANATIONS

IPC Sections 6-52A and BNS Sections 2-3

Definitions, interpretation and principles of joint criminal liability

## ACADEMIC NOTE

This study material explains the transition from the Indian Penal Code, 1860 to the Bharatiya Nyaya Sanhita, 2023. It is educational material and not a substitute for the official statutory text or legal advice.

# Index

|                                                           |          |
|-----------------------------------------------------------|----------|
| <b>Purpose and Scope</b>                                  | <b>3</b> |
| <b>Master IPC-to-BNS Map</b>                              | <b>3</b> |
| <b>Interpretive Rules and Persons</b>                     | <b>4</b> |
| General Exceptions and consistent meanings . . . . .      | 4        |
| Gender, number, person and public . . . . .               | 4        |
| Government, Judge, Court and public servant . . . . .     | 4        |
| <b>Property and Culpable Mental States</b>                | <b>4</b> |
| Movable property and possession . . . . .                 | 4        |
| Wrongful gain, wrongful loss and dishonestly . . . . .    | 4        |
| Fraudulently, reason to believe and counterfeit . . . . . | 4        |
| <b>Documents, Digital Records and Valuable Security</b>   | <b>5</b> |
| <b>Acts, Omissions and Group Liability</b>                | <b>5</b> |
| Acts include illegal omissions . . . . .                  | 5        |
| Common intention . . . . .                                | 5        |
| Shared knowledge or intention . . . . .                   | 5        |
| Combined causation and intentional cooperation . . . . .  | 5        |
| Different offences from the same act . . . . .            | 5        |
| <b>Voluntarily, Offence, Illegality and Injury</b>        | <b>6</b> |
| Voluntarily . . . . .                                     | 6        |
| Offence, special law and local law . . . . .              | 6        |
| Illegal and legally bound . . . . .                       | 6        |
| Injury . . . . .                                          | 6        |
| <b>Remaining Core Definitions</b>                         | <b>6</b> |
| <b>Material Changes Under the BNS</b>                     | <b>6</b> |
| <b>How to Answer a Problem Question</b>                   | <b>7</b> |
| High-value distinctions . . . . .                         | 7        |
| <b>Revision Summary</b>                                   | <b>7</b> |
| <b>Official Reading and Disclaimer</b>                    | <b>8</b> |

## Purpose and Scope

General Explanations are the interpretive machinery of the penal law. They determine how recurring words, mental states and participation rules operate throughout the statute. A definition of an offence must therefore be read together with these provisions and the General Exceptions even when the offence does not repeat them.

IPC Section 6 made every definition, penal provision and illustration subject to the General Exceptions. BNS Section 3(1) preserves the same method. IPC Section 7 required an expression once explained to carry that meaning throughout the Code; BNS Section 3(2) continues that rule.

The transition is structural. IPC Chapter II distributed the rules across Sections 6-52A. The BNS places definitions in Section 2 and the general explanations in Section 3. Accordingly, many IPC sections correspond to a clause within BNS Section 2 or a sub-section of BNS Section 3, not to a separately numbered BNS section.

**Exam rule: never write that IPC Sections 6-52A became BNS Sections 2-3 on a one-to-one basis. State that the subject matter was consolidated and then identify the relevant clause or sub-section.**

## Master IPC-to-BNS Map

| IPC provision      | BNS location                   | Subject and transition                                                                                                   |
|--------------------|--------------------------------|--------------------------------------------------------------------------------------------------------------------------|
| Sections 6-7       | Section 3(1)-(2)               | Provisions subject to General Exceptions; expressions used consistently.                                                 |
| Sections 8-12      | Section 2 definitions          | Gender, number, man, woman, person and public are consolidated; BNS expressly recognises transgender in its gender rule. |
| Sections 13, 15-16 | No operative equivalent        | Obsolete colonial definitions were repealed under the IPC and are not revived.                                           |
| Sections 14, 17-21 | Section 2 definitions          | Government, Judge, Court and public servant are consolidated; India is governed by the current constitutional territory. |
| Sections 22-31     | Section 2; Section 3(3)        | Property, dishonest or fraudulent conduct, belief, documents and possession.                                             |
| Sections 32-38     | Section 2(1); Section 3(4)-(9) | Acts, illegal omissions, common intention, shared mental states and cooperation.                                         |
| Sections 39-44     | Section 2 definitions          | Voluntarily, offence, special or local law, illegal, legal duty and injury.                                              |
| Sections 45-52A    | Section 2 definitions          | Life, death, animal, vessel, time, oath, good faith and harbour.                                                         |

# Interpretive Rules and Persons

## General Exceptions and consistent meanings

A penal provision is never isolated from the statutory exceptions. A child below the statutory age, or a police officer acting under a legal duty, may fall within a General Exception even though the offence definition does not repeat that qualification. Once the statute defines a term, that defined meaning follows it throughout the enactment unless the context requires otherwise.

## Gender, number, person and public

IPC Sections 8-12 addressed gender, singular and plural, man, woman, person and public. BNS Section 2 consolidates these concepts. A person includes a company, association or body of persons, whether incorporated or not. Public includes a class of the public or a community. The BNS gender definition expressly covers male, female and transgender persons by reference to the Transgender Persons (Protection of Rights) Act, 2019.

## Government, Judge, Court and public servant

The statutory meaning of Judge extends beyond a job title and turns on legal authority to give a definitive judgment. Court refers to a Judge, or body of Judges, acting judicially. Public servant is an inclusive functional definition covering specified judicial, military, governmental, local-authority, electoral and public-duty roles. Always connect the person to the relevant statutory category rather than relying only on ordinary speech.

**Historical caution: IPC Sections 13, 15 and 16 concerned Queen, British India and Government of India and had already been omitted or repealed. They have no live BNS counterpart.**

# Property and Culpable Mental States

## Movable property and possession

Movable property covers corporeal property other than land and things attached to the earth or permanently fastened to something attached to the earth. Possession may be attributed through a spouse, clerk or servant holding property on a person's account. BNS Section 3(3) retains this possession rule and includes temporary or occasion-specific service.

## Wrongful gain, wrongful loss and dishonestly

Wrongful gain is gain by unlawful means of property to which the gaining person is not legally entitled. Wrongful loss is the corresponding unlawful deprivation of property to which the losing person is legally entitled. Wrongful gain includes wrongful retention as well as acquisition; wrongful loss includes being wrongfully kept out of property as well as being deprived of it. A person acts dishonestly when intending wrongful gain to one person or wrongful loss to another.

## Fraudulently, reason to believe and counterfeit

Fraudulently requires an intent to defraud; it is not established merely because a statement was wrong. Reason to believe requires sufficient cause and is stronger than suspicion. Counterfeit focuses on causing one thing to resemble another with intent, or knowledge of likelihood, that deception will be practised. Exact imitation is unnecessary.

**Problem method: identify the property interest, the person legally entitled, the unlawful means and the accused's precise intention. Do not use dishonest and fraudulent as interchangeable labels.**

## Documents, Digital Records and Valuable Security

IPC Section 29 defined document broadly as matter expressed or described on a substance by letters, figures or marks and capable of evidencing that matter. IPC Section 29A separately adopted the Information Technology Act definition of electronic record. BNS Section 2 consolidates and modernises the concept: document includes electronic and digital records as well as conventional written material.

Examples include a contract, cheque, power of attorney, map, plan, instructions and an endorsement whose legal meaning arises from mercantile usage. The legal focus is the recorded matter and its capacity for use as evidence, not paper as a medium.

A valuable security is a document that creates, extends, transfers, restricts, extinguishes or releases a legal right, or acknowledges legal liability or absence of a legal right. A will is a testamentary document. The same conceptual distinctions remain relevant under the BNS.

**Digital transition: an email, server log, database entry or digitally signed instrument may be a document. Questions of proof and admissibility are governed separately by evidence law; classification as a document does not itself establish authenticity.**

## Acts, Omissions and Group Liability

### Acts include illegal omissions

IPC Sections 32-33 treated references to acts as extending to illegal omissions, unless a contrary intention appeared, and treated act or omission as including a series. BNS Section 2 defines act as a single act or series of acts, while Section 3(4) carries the act-and-illegal-omission rule.

### Common intention

IPC Section 34 is substantially carried into BNS Section 3(5). When a criminal act is done by several persons in furtherance of their common intention, each is liable for that act as if personally done. The prosecution must prove the criminal act, participation, and a shared intention connected to its commission. Mere presence or similar intention, without the required connection, is insufficient.

### Shared knowledge or intention

IPC Section 35 corresponds to BNS Section 3(6). Where conduct becomes criminal because it is done with particular knowledge or intention, each participant who joins with that mental state is liable as though acting alone with it.

### Combined causation and intentional cooperation

IPC Sections 36-37 correspond to BNS Section 3(7)-(8). An effect caused partly by an act and partly by an illegal omission is treated in the same way as an effect caused entirely by either. A person intentionally cooperating by doing one of several acts constituting an offence commits that offence, even though another participant performs the remaining acts.

### Different offences from the same act

IPC Section 38 corresponds to BNS Section 3(9). People involved in the same criminal act may be guilty of different offences because their intention, knowledge, provocation, capacity or other circumstances differ. Group involvement does not erase individual culpability.

**Common intention is a rule of joint liability, not a substitute for proof. Analyse each accused person's participation and mental state separately.**

# Voluntarily, Offence, Illegality and Injury

## Voluntarily

A person causes an effect voluntarily when using means intended to cause it or means known, or reasonably believed, likely to cause it. Direct desire for the precise consequence is therefore not always necessary. The statutory definition must be read with the mental element of the particular offence.

## Offence, special law and local law

The definition of offence is context-sensitive and may include conduct punishable under the general penal statute or, for specified provisions, under a special or local law. A special law concerns a particular subject; a local law applies to a particular part of India. Always read the clause used by the particular offence rather than assuming a universal meaning.

## Illegal and legally bound

Illegal covers what is an offence, what law prohibits, and what supplies a ground for civil action. A person is legally bound to do what it would be illegal to omit. This wide definition is crucial where liability depends on breach of duty or an illegal omission.

## Injury

Injury means harm illegally caused to a person in body, mind, reputation or property. It is broader than physical hurt. The prosecution must still establish that the harm was illegally caused and that the remaining ingredients of the offence are present.

## Remaining Core Definitions

| IPC provision | BNS location  | Subject and transition                                                                                                                               |
|---------------|---------------|------------------------------------------------------------------------------------------------------------------------------------------------------|
| Life / death  | BNS Section 2 | Refer to the life or death of a human being unless context indicates otherwise.                                                                      |
| Animal        | BNS Section 2 | Any living creature other than a human being.                                                                                                        |
| Vessel        | BNS Section 2 | Anything made for conveyance by water of human beings or property.                                                                                   |
| Year / month  | BNS Section 2 | Reckoned according to the Gregorian calendar under the modern wording.                                                                               |
| Oath          | BNS Section 2 | Includes a lawful solemn affirmation and an authorised declaration used for proof.                                                                   |
| Good faith    | BNS Section 2 | Requires due care and attention; honest belief alone is insufficient.                                                                                |
| Harbour       | BNS Section 2 | Includes shelter, food, drink, money, clothes, arms, ammunition, conveyance or other assistance to evade apprehension, subject to statutory context. |

## Material Changes Under the BNS

- Consolidation: dozens of IPC provisions are reorganised into two preliminary BNS sections.
- Digital drafting: document expressly includes electronic and digital records; electronic communication is separately defined.

- Inclusive gender: the BNS expressly recognises transgender persons in the gender definition.
- New collected definitions: child, mental illness and several technology-related expressions are expressly included.
- Terminology update: Court replaces the older expression Court of Justice in the definition structure.
- Historical cleanup: omitted colonial definitions are not reproduced as operative law.
- Continuity: the core meanings of dishonestly, fraudulently, reason to believe, good faith, common intention and intentional cooperation substantially continue.

## How to Answer a Problem Question

- Identify the date of conduct and decide whether the IPC or BNS applies.
- Locate the substantive offence and separate its conduct, circumstance, result and mental elements.
- Underline each defined expression and consult IPC Sections 6-52A or BNS Sections 2-3 as applicable.
- For omissions, identify the legal duty and explain why failure to act was illegal.
- For group conduct, prove participation and apply the correct rule: common intention, shared knowledge or intention, combined causation, or intentional cooperation.
- Consider General Exceptions because every definition and penal provision is read subject to them.
- Apply the facts to each ingredient and give an individual conclusion for each accused person.

### High-value distinctions

| IPC provision      | BNS location      | Subject and transition                                                                       |
|--------------------|-------------------|----------------------------------------------------------------------------------------------|
| Suspicion          | Reason to believe | Reason to believe requires sufficient cause.                                                 |
| Honest belief      | Good faith        | Good faith additionally requires due care and attention.                                     |
| Wrongful gain/loss | Dishonestly       | The property consequence supplies the object of the intention.                               |
| Intent to deceive  | Fraudulently      | The statutory inquiry is intent to defraud, considered in context.                           |
| Similar intention  | Common intention  | Common intention requires a shared intention linked to the criminal act.                     |
| Presence           | Participation     | Presence alone is insufficient unless it intentionally contributes within the relevant rule. |

## Revision Summary

- IPC 6 maps in substance to BNS 3(1); IPC 7 to BNS 3(2).
- Most IPC definitions from Sections 8-31 and 39-52A are consolidated in BNS Section 2.
- IPC possession and act-or-omission rules are in BNS Section 3(3)-(4).
- IPC common intention and related participation rules in Sections 34-38 are in BNS Section 3(5)-(9).
- Good faith means due care and attention; reason to believe means sufficient cause.
- Dishonestly centres on wrongful gain or wrongful loss; fraudulently centres on intent to defraud.
- Documents under the BNS include electronic and digital records.
- The same criminal act may produce different offences for different participants.

## Official Reading and Disclaimer

[Bharatiya Nyaya Sanhita, 2023 - official Ministry of Home Affairs text](#)

[Indian Penal Code, 1860 - India Code text](#)

**The statutory text should always be checked for amendments, notifications and binding judicial interpretation.  
This educational material does not provide legal advice.**